

GOVERNMENT OF PAKISTAN
CABINET SECRETARIAT
(ESTABLISHMENT DIVISION)

No.F.10/52/95-R.2 Islamabad, the 18th July, 1996.

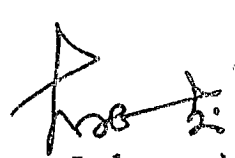
OFFICE MEMORANDUM

Subject:- APPOINTMENT ON CONTRACT BASIS

The undersigned is directed to state that the standard terms and conditions of appointment on contract were last circulated vide Establishment Divisions's O. M. No.F.10/55/82-R.2, dated 15th January, 1985. These have since been reviewed in consultation with Finance Division and Law and Justice Division.

2. The revised format for contract appointments is enclosed. All Ministries/Divisions are requested that, henceforth, the revised format may be used in case of contract appointments in the Ministries, Divisions and their Attached Departments and other Organizations under them.

Encl: As above


(M. YAHYA QURESHI)
Deputy Secretary
Phone:9202915.

All Ministries/Divisions

GOVERNMENT OF PAKISTAN
NAME OF MINISTRY

No. Islamabad/Rawalpindi ,1996
From:

To :

Subject: EMPLOYMENT ON CONTRACT BASIS

Sir,

I am directed to say that you have been selected for appointment on contract as _____ under the Federal Government on the following terms and conditions:-

1. Post: _____
2. Place of posting: _____ or anywhere within or outside Pakistan as the competent authority may decide.
3. Period of contract: _____ (not exceeding two years) from the date of assumption of charge.
4. Pay: Minimum of the relevant scale of pay. Annual increment shall be admissible as under the normal rules.
5. Allowances: As admissible to corresponding civil servants. However, Qualifications Pay/Allowance, Senior Post Allowance and Orderly Allowance shall not be admissible in case these allowances were taken

into account while calculating pension after retirement from previous service.

6. Travelling Allowance:

As admissible to civil servants of the corresponding pay scale under the rules.

7. Seniority:

This contract appointment does not confer any right for being placed in the gradation/seniority list of the cadre/group to which the subject post belongs.

8. Leave:

As admissible under the Revised Leave Rules, 1980. However, provisions contained in rules 5(c), 8, 11, 14, 16, 17, 18, 18-A, 19, 27, 33, 34, 35, 36, and 39 of Rules ibid shall not apply.

All leave at your credit will lapse on the termination of this contract.

9. Medical Facilities:

As admissible to officers of the Federal Government under the rules.

20. Pension:

Service rendered under this contract shall not qualify for a pension or gratuity.

Pension in respect of previous service, if any, shall continue to be drawn in addition to pay.

11. General Provident Fund.

No contribution towards G. P. Fund shall be required.

12. Conduct and Discipline:

Rules made and instructions issued by the Government or a prescribed authority as for civil servants under

Section 15 and 16 of the Civil Servants Act, 1973 as amended from time to time shall apply.

13. Appeal:

Civil Servants (Appeal) Rules, 1977 with amendments if any shall apply.

14. Termination of contract:

The appointment during the period of contract shall be liable to termination on thirty days notice on either side or payment of basic pay in lieu thereof, without assigning any reason.

15. Whole time employment posting and transfer:

Whole time of the contract appointee would be at the disposal of the Government. He may be employed in any manner required by appropriate authority without claim for additional remuneration. He shall at all times obey the rules prescribed for the time being for the regulation of the service or cadre to which the post in which he has been employed belongs.

16. Other matters:

In respect of other matters not specified in this contract, the rules/regulations as applicable to Federal Civil Servants shall apply.

2. If the above terms and conditions of appointment are acceptable to you, please send your written confirmation by registered post or personally so as to reach the undersigned within one month of the date of this letter.

Contd...P.4

3. This offer of appointment will be treated as cancelled if you do not convey acceptance thereof or resume duty within the time specified in para 2 above.

Your obedient servant,

GOVERNMENT OF PAKISTAN
CABINET SECRETARIAT
ESTABLISHMENT DIVISION

No.10/52/95-R.2(P1)

Islamabad, the 21st August, 2001.

OFFICE MEMORANDUM

SUBJECT:- STANDARD TERMS AND CONDITIONS OF CONTRACT APPOINTMENTS - CASE OF RETIRED CIVIL SERVANTS, RETIRED OFFICERS OF THE ARMED FORCES, RETIRED JUDGES OF SUPERIOR COURTS.

The undersigned is directed to refer to the Standard Terms and Conditions of Contract Employment, issued vide Establishment Division's O.M.No.10/52/95-R.2, dated 18.7.1996, as amended from time to time, and to say that the matter has been reviewed in consultation with the Finance Division, and it has been decided with the approval of the competent authority that the terms of re-employment of retired civil servants, retired officers of the Armed Forces and retired Judges of Superior Courts shall henceforth be as under:-

- I. Re-employment on a civil post relating to the affairs of the Federation:
 - (a) A retired civil servant and a retired officer of the Armed Forces, re-employed on a civil post equivalent to the post from which he retired, may be allowed the pay, allowances and perquisites sanctioned for the post. His pay may be fixed at that stage of the time scale of the post at which he was drawing his pay before retirement.
 - (b) A retired Judge of the superior courts may be allowed pay, allowances and perquisites sanctioned for the post, and his pay may be fixed at the maximum of the pay scale of the post.
 - (c) Retired civil servants or retired officers of the Armed Forces, re-employed against a higher post, may be allowed the last pay drawn plus allowances and perquisites sanctioned for the post.
- II. Re-employment in Autonomous Bodies:
 - (a) A retired civil servant and a retired officer of the Armed Forces and a retired Judge of the superior courts, on re-employment in an autonomous body administered or controlled by the Federal Government, may be allowed pay as determined at (a), (b) and (c) above plus the allowances and perquisites sanctioned for the post.

- (b) Where the terms and conditions of a post are prescribed in a statute or a statutory notification, the provisions of the statute or the statutory notification, as the case may be, should prevail.

III. Existing Pensionary benefits to continue.

The terms and conditions proposed above should have no bearing on the pension to which a retired civil servant or a retired officer of the Armed Forces or a retired Judge of the superior courts may be entitled in accordance with the applicable law and the rules.

2. The standard terms and conditions of contract appointment circulated vide O.M.No.F.10/52/95-R.2, dated 18th July, 1996 stand amended to the above extent.

A. Amir-ul-Haq
(AMIR-UL-HAQ)
Deputy Secretary

ALL MINISTRIES/DIVISIONS.

**GOVERNMENT OF PAKISTAN
CABINET SECRETARIAT
ESTABLISHMENT DIVISION**

No. 10/52/95-R.2(Pt),

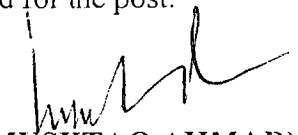
Islamabad, the 6th October, 2003

OFFICE MEMORANDUM

SUBJECT:- STANDARD TERMS AND CONDITIONS OF CONTRACT APPOINTMENTS CASE OF RETIRED CIVIL SERVANTS, RETIRED OFFICERS OF THE ARMED FORCES, RETIRED JUDGES OF SUPERIOR COURTS.

The undersigned is directed to state that the instructions contained in para I(c) of Establishment Division O.M. No.10/52/95-R.2(Pt), dated 21.8.2001 (copy enclosed) have been reviewed and it has been decided with the approval of the Prime Minister that the provisions of para I(c) of the O.M. referred to above shall be substituted by the following:-

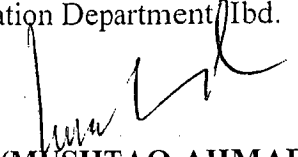
- “(c) A retired civil servant or a retired officer of the Armed Forces, re-employed against a higher post, may be allowed the last pay drawn, provided that if he was drawing pay in a previous pay scale before his retirement, his pay may be fixed in the present scale at the relevant stage plus allowances and perquisites sanctioned for the post.


(MUSHTAQ AHMAD)
SECTION OFFICER

ALL MINISTRIES/DIVISIONS.

Copy to:-

- (1) Prime Minister's Secretariat, (Mr. Fazal Nabi, Joint Secretary) Islamabad with reference to their U.O. No.20/LRP/Estab/2003, dated 18.9.2003.
- (2) Secretary, Finance Division, Islamabad, with reference to their U.O.No.Dy.2127(S)/2002, dated 22.11.2002.
- (3) Auditor General of Pakistan, Islamabad.
- (4) Director General, I.B. Islamabad.
- (5) Secretary, F.P.S.C., Islamabad.
- (6) All Chief Secretaries of the Provinces.
- (7) Secretary, National Reconstruction Bureau, Ibid.
- (8) Secretary, NAB, Islamabad.
- (9) Military Accountant General, Rawalpindi.
- (10) Principal Information Officer, Press Information Department, Ibid.


(MUSHTAQ AHMAD)
SECTION OFFICER

Government of Pakistan
Cabinet Secretariat
Establishment Division

No.8/10/2000-CP.I

Islamabad, the 21st March, 2000.

OFFICE MEMORANDUM

Subject:- **CONTRACT APPOINTMENTS.**

The undersigned is directed to say that it has been noticed with concern that contract appointments were made in the past indiscriminately without proper examination of the need therefor and without ensuring observance of the principle of open merit, and equality of opportunity. It has now been decided by the Chief Executive that the following guidelines should be strictly observed in future while proposing contract appointments to civil posts under the Federal Government:-

- i) The concerned department should specifically justify why it is not possible to fill in a vacancy in accordance with the procedure laid down in the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973 and the Recruitment Rules and where it is considered necessary to fill in a post on contract, it shall only be for a period not exceeding two years. The professional qualifications, experience, and age limit (where necessary) required for the post, shall be prescribed in consultation with the Establishment Division.
- ii) The post should be advertised and selection should be made by a Departmental Selection Committee, as per the following composition:-

<u>Scales</u>	<u>Composition of the Committee</u>		
BS-20 and above	Minister	-	Chairman
	Secretary	-	Member
	J.S.(Admn)	-	Member-cum-Secy

(Note) In case the post(s) are in an
Attached Department/Subordinate

7

Office, Head of the Department will be co-opted as Member.

BS-1 to 19	Secretary	-	Chairman
	JS(Admn)	-	Member
	DS(Admn)	-	Member-cum-Secy

(Note) In case the post(s) are in an Attached Department/Subordinate Office, head of the Attached Department will be co-opted as Member.

- iii) The condition of open advertisement may be dispensed with, with the approval of the Chief Executive, if it is proposed to appoint a retired civil servant or a retired officer of the Armed Forces or a retired Judge of a superior court, on contract basis.
- iv) All contract appointments shall be made with the approval of the appointing authority prescribed under the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973.
- v) As a matter of general policy the period of contract shall not be extended beyond two years but in exceptional cases where it is considered necessary to extend such appointments beyond the period of two years, the advice/concurrence of the FPSC may be sought at least six months in advance of expiry of the period of original appointment, and thereafter approval of the competent authority may be sought.

2. Policy guidelines for contract appointments in Autonomous Bodies/Semi Autonomous Bodies, Corporations, Public Sector Companies etc. owned and managed by the Federal Government shall be issued separately.


(Abdul Wadood Khattak)
Deputy Secretary

All Secretaries/Additional Secretaries(Incharge of the Ministries/Divisions, Islamabad/Rawalpindi.

GOVERNMENT OF PAKISTAN
CABINET SECRETARIAT
ESTABLISHMENT DIVISION

F.No.8/10/2000-CP.I

Islamabad, the 23rd Dec 2000.

OFFICE MEMORANDUM

Subject:- EXTENSION IN THE PERIOD OF CONTRACT APPOINTMENTS FOR POSTS OUTSIDE THE PURVIEW OF FPSC.

The Guidelines on contract appointments issued vide Establishment Division O.M.No.8/10/2000-CP.I dated 21-3-2000 laydown interalia, that:-

- v) "As a matter of general policy the period of contract shall not be extended beyond two years but in exceptional cases where it is considered necessary to extend such appointments beyond the period of two years, the advice/concurrence of the FPSC may be sought at least six months in advance of expiry of the period of original appointment and thereafter approval of the competent authority may be sought".

2. The above caveat is only applicable to such posts which fall within the purview of the FPSC in terms of Rule 3 of the FPSC (Functions) Rules, 1978 i.e. posts in BS-16 and above and posts in BS 11-15 in the departments specified vide SRO No.-415/2000 dated 19-6-2000.

3. In terms of sub para (iv) of para 1 of above said OM dated 21-3-2000 contract appointments are required to be made with the approval of the appointing authority prescribed under rule 6 of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973. This means that contract appointment to posts in BS-20 and above are required to be approved by the Chief Executive, and extension of such appointments beyond two years would also require the approval of the Chief Executive.

4. As regards appointments beyond two years to posts in BS-19 and below falling outside the purview of the FPSC, following instructions may be followed:-

- (i) extension of contract appointments beyond two years to posts in BS 17-19 shall be subject to the approval of the Establishment Secretary;
- (ii) extension of contract appointments beyond two years to posts in BS-16 shall be subject to approval of the Secretary of the administrative Division concerned and heads of departments in BS-21;

Contd.....P/2.

- (iii) extension of contract appointments beyond two years to posts in BS-15 and below shall be subject to approval of a Grade-21 officer designated by Secretary in the case of Ministries/Divisions and Head of Department in the case of Attached Departments and subordinate offices.
- (iv) the case for extension shall be moved at least two months in advance of the expiry of original appointment.


(ABDUL WADOOD KHATTAK)
Deputy Secretary

All Ministries/Divisions
Islamabad/Rawalpindi.
FPS.

GOVERNMENT OF PAKISTAN
CABINET SECRETARIAT
ESTABLISHMENT DIVISION

F.No.8/10/2000-CP.I

Islamabad, the 13th August, 2001.

OFFICE MEMORANDUM

Subject:- **CONTRACT APPOINTMENTS.**

The undersigned is directed to refer to Establishment Division O.M. of even number dated 21st and 22nd March 2000 on the above subject and to say that the Chief Executive has approved addition of following sub-para to para 1 of the said O.M.:-

- iii(b) "The condition of open advertisement may also be relaxed by the Chief Executive for the purpose of appointment, on contract basis, of widow, or one child of a deceased civil servant who dies during service; provided that such special dispensation may be allowed only to the family of civil servants in BS-15, and below for appointment to posts in BS-5 and below".


(ABDUL WADOOD KHATTAK)
DEPUTY SECRETARY

All Secretaries/Additional Secretaries/
(Incharge of the Ministries/Divisions),
Islamabad./Rawalpindi.

GOVERNMENT OF PAKISTAN
CABINET SECRETARIAT
ESTABLISHMENT DIVISION

F.No.8/10/2000-CP-I

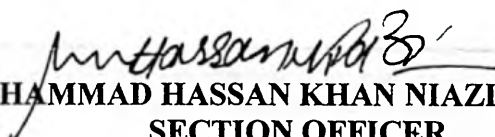
Islamabad, the 5th January 2002.

Office memorandum

Subject:- **CONTRACT APOINTMENTS.**

The undersigned is directed to refer to Establishment Division O.M of even number dated 21st and 22nd March 2000 on the above subject and to say that the Chief Executive has approved substitution of sub para (iii) (b) of para 1 of O.M of even.number dated 13th August 2001 by the following:-

iii(b): "The condition of open advertisement may also be relaxed by the Chief Executive for the purpose of appointment on contract basis of widow, or one child of a deceased civil servant who dies during service provided that such special dispensation may be allowed only for appointment to posts in BS-10 and below".


(MUHAMMAD HASSAN KHAN NIAZI)
SECTION OFFICER

**All Secretaries/Additional Secretaries/
(Incharge of the Ministries/Divisions),
Islamabad/Rawalpindi.**

Government of Pakistan
Cabinet Secretariat
Establishment Division
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No. 8/10/2000-CP.I

Islamabad, the 25th Sept., 2002

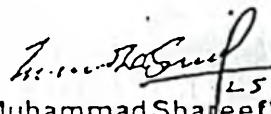
Office Memorandum

Subject: - CONTRACT APPOINTMENTS.

The undersigned is directed to say that Ministries / Divisions have been submitting summaries for the Chief Executive to relax the condition of open advertisement for the purpose of appointment on contract basis of widow or one child of deceased civil servants who die during service. The Chief Executive's Secretariat has recently returned such proposals with following observations:

"It may please be confirmed that no official of such category(s) is awaiting posting / adjustment in the Surplus Pool."

2. In view of the above, it is necessary that before submitting such proposals to the Chief Executive, it may be ascertained from Management Services Wing whether any person is available in the surplus pool for the post against which it is proposed to employ widow or child of a deceased civil servant and factual information in this regard should be given in the Summary for the Chief Executive.


(Muhammad Shafeef)
Deputy Secretary (CP-II)

All Secretaries / Addl. Secretaries (Incharge),
Ministries / Divisions,
Government of Pakistan,
Islamabad / Rawalpindi.

Government of Pakistan
Cabinet Secretariat
Establishment Division

No. 8/10/2000-CP-I

Islamabad, the 6th August, 2004

Office Memorandum

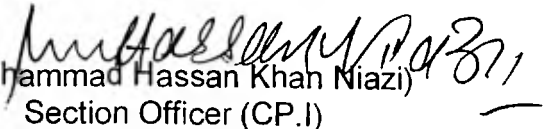
Subject:- CONTRACT APPOINTMENTS

The undersigned is directed to refer to the Establishment Division's O.M. No. 8/10/2000-CP.I dated 21st March, 2000 on the above subject and to state that the Prime Minister has approved following amendment / addition in para 1 (iii) (c) of the above quoted O.M:-

- (i) The word "/widower" may also be added after the word "widow".
- (ii) The following proviso may further be added:-

"Provided further that the widow/widower or a child of a civil servant who dies during service will have to apply for contract appointment within one year after the death of a civil servant. In case of a minor child of a civil servant, the one year period will start from the date he/she attains the age of 18 years".

2. The above mentioned amendment may also be brought to the notice of the attached departments / subordinate offices of the Ministries / Divisions.


(Muhammad Hassan Khan Niazi)
Section Officer (CP.I)
Phone No. 9208610

All Secretaries / Additional Secretaries Incharge,
Ministries / Divisions,
Islamabad / Rawalpindi.

Copy for information to the Wafaqi Mohtasib (Ombudsman)'s Secretariat (Brigadier (R) Zulfiqar Ahmad Khan, Advisor), Islamabad with reference to this Division's u.o. note of oven number dated 3rd August, 2004.

(Muhammad Hassan Khan Niazi)
Section Officer (CP.I)

Government of Pakistan
Cabinet Secretariat
Establishment Division

No. 4/1/2005-CP-I

Islamabad, the 13th April, 2005

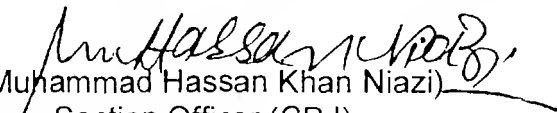
Office Memorandum

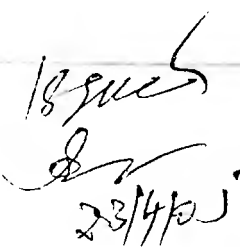
Subject:- CONTRACT APPOINTMENT.

The undersigned is directed to refer to Establishment Division's Office Memorandum No. 8/10/2000-CP.I dated 21st March, 2000 (amended from time to time) on the above subject and to state that the Prime Minister has been pleased to approve substitution of Para 1 (iii) (c) of the said O.M. with the following:-

"The condition of open advertisement may also be relaxed by the Prime Minister for the purpose of appointment on contract basis of widow/widower or one child of a deceased civil servant who dies during service and wife / husband or one child of a serving civil servant who becomes "permanently disabled during service" and he / she takes retirement from service provided that such special dispensation may be allowed only for appointment to posts in BS-10 and below".

"Provided further that the widow/widower or a child of a civil servant who dies during service and wife/husband or a child of a serving civil servant who becomes "permanently disabled during service" and he / she takes retirement from service will have to apply for contract appointment within one year after the death of a civil servant or retirement of a permanently disabled civil servant. In case of a minor child of a civil servant, the one year period will start from the date he/she attains the age of 18 years".


(Muhammad Hassan Khan Niazi)
Section Officer (CP.I)
Phone No. 9208610


All Ministries / Divisions /
Departments.